
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 16-0068
Mental Health Counselor License of	)	
	)	
MARK GARLICK	)	NOTICE OF HEARING AND
License No. 001046	)	STATEMENT OF CHARGES
Respondent.	)	

COMES NOW the Iowa Board of Behavioral Science ("Board") and files this Notice of Hearing and Statement of Charges against Mark Garlick ("Respondent"), 405 W 45th St., Sioux City, IA 51104, pursuant to Iowa Code sections 17A.12(2), 17A.18(3), and 272C.3(1)"e" (2016), and 645 IAC 11.6. Respondent's license number 001046 to practice as a mental health counselor is currently active through September 30, 2018.

A. TIME, PLACE, AND NATURE OF HEARING

Hearing. A disciplinary contested case hearing shall be held on February 2, 2017, before the Board. The hearing shall begin at 10:00 a.m. and shall be located in the 5th Floor Conference Room #526 at the Lucas State Office Building, 321 E. 12th Street, Des Moines, Iowa 50319.

Answer. Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges, you may file an Answer pursuant to 645 IAC 11.12. The Answer should specifically admit, deny, or otherwise answer all allegations contained in sections C and D of this Notice of Hearing and Statement of Charges.

Filing of Pleadings. Pleadings shall be filed with the Board at the following address: Iowa Board of Behavioral Science, Lucas State Office Building, 5th Floor, 321 E. 12th St., Des Moines, Iowa 50319.

Presiding Officer. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge from the Department of Inspections and Appeals make initial rulings on prehearing matters, and be present to assist and advise the Board at the hearing.

Pre-hearing Conference. Any party may request a prehearing conference in accordance with 645 IAC 11.17 to discuss issues related to the hearing.

Hearing Procedures. The procedural rules governing the conduct of the hearing are found at 645 IAC chapter 11. At the hearing, you may appear personally or be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at the hearing. If you need to request an alternative time or date for the hearing, you must comply with the requirements in 645 IAC 11.18. The hearing may be open to the public or closed to the public at your discretion.

Prosecution. The Office of Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of pleadings should be provided to counsel for the State at the following address:

Laura Steffensmeier
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, Iowa 50319

Ms. Steffensmeier can also be reached by phone at (515) 281-6690 or by e-mail at laura.steffensmeier@iowa.gov.

Communications. You may not contact individual Board members in any manner, including by phone, letter, or e-mail, regarding this Notice of Hearing and Statement of Charges. Board members may only receive information about the case when all parties have notice and the opportunity to participate, such as at the hearing or in pleadings you file with the Board office and serve upon all parties in the case.

B. LEGAL AUTHORITY AND JURISDICTION

Jurisdiction. The Board has jurisdiction in this matter pursuant to Iowa Code chapters 17A, 147, 154D, and 272C (2016).

Legal Authority. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 147, 154D, and 272C, and 645 IAC chapters 13 and 33.

Default. If you fail to appear at the hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

C. CHARGES

Count I

Respondent is charged with engaging in sexual activities or sexual contact with a former client within the five years following termination of the client relationship in violation of 645 IAC 33.2(30)(b), pursuant to Iowa Code section 147.55(9).

Count II

Respondent is charged with violating section A.5.b. of the ACA Code of Ethics (2005)¹ entitled "Roles and Relationships with Clients—Former Clients", pursuant to Iowa Code section 147.55(9) (2011) and 645 IAC 33.2(1)(b).

¹ The current ACA Code of Ethics was enacted in 2014. Because the conduct at issue pre-dates the 2014 ACA Code of Ethics, all citations are to the 2005 ACA Code of Ethics. The provisions cited from the 2005 ACA Code of Ethics are not substantially different from the 2014 ACA Code of Ethics.

Count III

Respondent is charged with unethical conduct, specifically improper sexual contact with, or making suggestive, lewd, lascivious or improper remarks or advances to a patient, client or coworker, pursuant to Iowa Code sections 147.55(3) and (9), and 645 IAC 33.2(29)(b).

Count IV

Respondent is charged with violating section A.11.c. of the ACA Code of Ethics (2005) entitled "Appropriate Termination", pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(1)(b).

Count V

Respondent is charged with violating section B.6.a. of the ACA Code of Ethics (2005) entitled "Creating and Maintaining Records and Documentation", pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(1)(b).

Count VI

Respondent is charged with violating section A.10.f. of the ACA Code of Ethics (2005) entitled "Receiving Gifts", pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(1)(b).

Count VII

Respondent is charged with engaging in physical contact with a client when there is a possibility of psychological harm to the client as a result of the contact in violation of 645 IAC 33.2(31), pursuant to Iowa Code section 147.55(9).

D. FACTUAL CIRCUMSTANCES

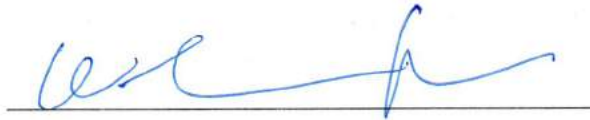
1. Respondent provided counseling to client #1 from March 2010 to March 2011.
2. Respondent began a romantic counselor-client relationship with client #1 approximately 1 year after the termination of the counselor-client relationship.
3. Respondent provided counseling to client #2 from January 2013 to May of 2013.
4. Respondent divulged personal information and made remarks of a sexual nature to client #2 during sessions. Respondent and client #2 communicated outside of sessions.
5. Client #2 told Respondent that she had feelings for him. Respondent continued to provide counseling to client #2. Respondent's documentation does not reference the feelings shared by client #2.
6. Respondent accepted gifts from client #2.
7. Respondent repeatedly hugged client #2.
8. Respondent kissed and touched client #2.

E. SETTLEMENT

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC 12.1. If you are interested in pursuing settlement in this matter, please contact Assistant Attorney General Laura Steffensmeier at (515) 281-6690.

F. FINDING OF PROBABLE CAUSE

On this 10th day of November, 2016, the Iowa Board of Behavioral Science found probable cause to file this Notice of Hearing and Statement of Charges.



vice-Chairperson
Iowa Board of Behavioral Science

Copy to:

Laura Steffensmeier
Assistant Attorney General
Office of the Attorney General of Iowa
1305 E. Walnut St.
Des Moines, IA 50319
ATTORNEY FOR THE STATE

PLEASE NOTE: If you require the assistance of auxiliary aids or services to participate in this matter because of a disability, immediately call 515-281-0233. (If you are hearing impaired, call Relay Iowa TTY at 1-800-735-2942).